BUSBOYS AND POETS
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Hold fast to dreams, for if dreams die, life is a broken-winged bird that cannot fly.
Langston Hughes
THE
PAT
PERFORME
become

The Reasonable Person

The Reasonable Person

Juries

Class 6

Duncan v. Louisiana

1. What are the facts of the case?

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Duncan v. Louisiana

1. What are the facts of the case?

2. What happened at trial and sentencing?

3. What was the Supreme Court's holding?

4. What is the rule today?

The Rule

In criminal cases in which a prison sentence of *six months or more* is possible, the defendant has a right to trial by jury.

Side Note: Incorporation

The process by which the Amendments to the Constitution are held to apply not only the federal government, but also to state and local governments.

People v. Leroy Reed

Attendant Circumstance: be a felon

Actus Reus: possess a firearm

Mens Rea: knowledge

The Rule

Juries may acquit for any reason or no reason at all. But judges are under no obligation to inform them of that right, and generally do not.

Jury Nullification

Should jurors disregard the law? If so, why? If not, why not? Can we deny them instructions on that power?

Professor Paul Butler

Elements of a Crime

Statute

WIS. STAT. § 941.29 Possession of a firearm

… A person who possesses a firearm is guilty of a Class G felony if … [t]he person has been convicted of a felony in this state.

Instructions

There are three elements of the law that must be satisfied: (1) that he was a felon, (2) that he had a gun, and (3) that he knew he had a gun.

State v. Black
242 Wis.2d 126 (2001)

[T]he statute makes no reference to intent and therefore creates a strict liability offense.... As a result, the State is only required to show that the felon "possessed" the firearm with knowledge that it is a firearm. In this context, "possess," according to the legal definition, simply "means that the defendant knowingly had actual physical control of a firearm." Wis JI—Criminal 1343 (1997)...

What about Jury Polling?

Which of the problems related to jury nullification does it address or fail to address?

Which problems with the current system does it address or fail to address?

Should we implement it in the District of Columbia?

Judge W. Scott Gwin